

# *Federal Constitution*

## *NOTES*

*Chapter 6—Capacity as respects property,  
contracts and suits*

**Capacity of Federation as respects property, contracts and suits**

**69.** (1) The Federation has power to acquire, hold and dispose of property of any kind and to make contracts.

(2) The Federation may sue and be sued.

PART V

THE STATES

**Precedence of Rulers and Yang di-Pertua-Yang di-Pertua Negeri**

**70.** (1) Subject to the precedence of the Yang di-Pertuan Agong and his Consort, the Rulers and Yang di-Pertua-Yang di-Pertua Negeri of the States shall take precedence over all other persons and each Ruler or Yang di-Pertua Negeri shall in his own State take precedence over the other Rulers and Yang di-Pertua-Yang di-Pertua Negeri.

(2) Subject to Clause (1), the Rulers shall take precedence over the Yang di-Pertua-Yang di-Pertua Negeri and, among themselves, in accordance with the dates on which they acceded as Rulers, and the Yang di-Pertua-Yang di-Pertua Negeri shall take precedence among themselves in accordance with the dates on which they were appointed as Yang di-Pertua-Yang di-Pertua Negeri; and if Yang di-Pertua-Yang di-Pertua Negeri were appointed on the same day the older shall take precedence over the younger.

**Federal guarantee of State Constitutions**

**71.** (1) The Federation shall guarantee the right of a Ruler of a State to succeed and to hold, enjoy and exercise the constitutional rights and privileges of Ruler of that State in accordance with the Constitution of that State; but any dispute as to the title to the succession as Ruler of any State shall be determined solely by such authorities and in such manner as may be provided by the Constitution of that State.

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### **Art. 69**

*Clause (1): See Government Contracts Act 1949 [Act 120].*

*Clause (2): See Government Proceedings Act 1956 [Act 359].*

### **Art. 70**

*Clause (1)*

The words “Yang di-Pertua Negeri” substituted for the word “Governor” by Act A354, section 42, in force from 27-08-1976.

*Clauses (1) & (2)*

The words “Yang di-Pertua-Yang di-Pertua Negeri” substituted for the word “Governors” by Act A514, paragraph 19(1)(a), in force from 27-08-1976.

*See Art. 159(5).*

### **Art. 71**

*Clause (1): See Art. 159(5).*

(2) Clause (1) shall, with the necessary modifications, apply in relation to a Ruling Chief of Negeri Sembilan as it applies to the Ruler of a State.

(3) If it appears to Parliament that in any State any provision of this Constitution or of the Constitution of that State is being habitually disregarded, Parliament may, notwithstanding anything in this Constitution, by law make provision for securing compliance with those provisions.

(4) If at any time the Constitution of any State does not contain the provisions set out in Part I of the Eighth Schedule, with or without the modifications allowed under Clause (5) (hereinafter referred to as “the essential provisions”) or provisions substantially to the same effect, or contains provisions inconsistent with the essential provisions, Parliament may, notwithstanding anything in this Constitution, by law make provision for giving effect in that State to the essential provisions or for removing the inconsistent provisions.

(5) The provisions set out in Part I of the Eighth Schedule may be modified by substituting for section 2 or section 4 or both the provisions set out in Part II of that Schedule as an alternative thereto—

- (a) in the case of every State, until the dissolution of the second Legislative Assembly constituted in accordance with those provisions or those provisions so modified;
- (b) in the case of Perlis, until such further time as the Legislative Assembly of that State may resolve and, as respects the provision set out in section 2 of that Schedule, indefinitely.

(6) A law made for a State in pursuance of this Article shall, unless sooner repealed by Parliament, cease to have effect on such day as a new Legislative Assembly, constituted in that State after the passing of the law, may resolve.

(7) In relation to the State of Sabah or Sarawak—

- (a) Clause (5) shall not apply; but
- (b) until the end of August 1957, or such earlier date as the Yang di-Pertuan Agong with the concurrence of the Yang di-Pertua Negeri may by order direct, Clause (4) shall apply as if the reference to the modifications allowed under Clause (5) were a reference to the modifications made by the Constitution of the State as in force on Malaysia Day.

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### **Art. 71—(cont.)**

#### *Clause (4)*

- a. Act 25/1963, section 8, in force from 29-08-1963, deleted the words “after the thirtieth day of June, nineteen hundred and fifty-nine” which appeared after the words “If at any time”.
- b. The words “it appears to Parliament that” were deleted by Act 26/1963, subsection 12(2), in force from 16-09-1963.

#### *Clause (7)*

- a. Added by Act 26/1963, subsection 12(1), in force from 16-09-1963.
- b. The word “1975” in paragraph (b) substituted for the word “1957” by Act 59/1966, section 2, in force from 16-09-1963.
- c. The words “Yang di-Pertua Negeri” substituted for the word “Governor” by Act A354, section 42, in force from 27-08-1976.
- d. The words “the State of Sabah or Sarawak” substituted for the words “a Borneo State” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.

(8) (*Repealed*).

### **Privileges of Legislative Assembly**

**72.** (1) The validity of any proceedings in the Legislative Assembly of any State shall not be questioned in any court.

(2) No person shall be liable to any proceedings in any court in respect of anything said or any vote given by him when taking part in proceedings of the Legislative Assembly of any State or of any committee thereof.

(3) No person shall be liable to any proceedings in any court in respect of anything published by or under the authority of the Legislative Assembly of any State.

(4) Clause (2) shall not apply to any person charged with an offence under the law passed by Parliament under Clause (4) of Article 10 or with an offence under the Sedition Act 1948 as amended by the \*Emergency (Essential Powers) Ordinance No. 45, 1970.

(5) Notwithstanding Clause (4), no person shall be liable to any proceedings in any court in respect of anything said by him of the Ruler of any State when taking part in any proceedings of the Legislative Assembly of any State or any committee thereof except where he advocates the abolition of the Ruler's position as the constitutional Ruler of that State.

## **PART VI**

### **RELATIONS BETWEEN THE FEDERATION AND THE STATES**

#### *Chapter 1—Distribution of legislative powers*

### **Extent of federal and State laws**

**73.** In exercising the legislative powers conferred on it by this Constitution—

(a) Parliament may make laws for the whole or any part of the Federation and laws having effect outside as well as within the Federation;

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\*NOTE—The Emergency (Essential Powers) Ordinance No. 45, 1970 [*P.U. (A) 282/1970*] has ceased to have effect on 21 June 2012 by virtue of Clause (7) of Article 150 of the Federal Constitution.

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### **Art. 71—(cont.)**

#### *Clause (8)*

This Clause was added by Act 26/1963, subsection 12(1), in force from 16-09-1963, and repealed by Act 59/1966, section 2, in force from 16-09-1963 and read as follows:

“(8) In relation to Singapore Clauses (4) to (6) shall not apply, but no enactment of the Legislature of Singapore making in the Constitution of the State amendments relating to any matter dealt with by the provisions set out in Part I of the Eighth Schedule (as it applies to Singapore) shall have effect unless—

- (a) the amendments do not materially affect the operation of the Constitution in relation to those matters; or
- (b) the effect of the amendments is confined to inserting provisions so set out or provisions substantially to the same effect (whether or not in substitution for other provisions) or to removing provisions inconsistent with the provisions so set out; or
- (c) the enactment is approved by Act of Parliament.”.

### **Art. 72**

*Clause (4)*: Added by Act A30, section 4, in force from 10-03-1971.

*Clause (5)*: Inserted by Act A848, section 6, in force from 30-03-1993.

### **Part VI**

*See* Art. 154(2).

- (b) the Legislature of a State may make laws for the whole or any part of that State.

### **Subject matter of federal and State laws**

**74.** (1) Without prejudice to any power to make laws conferred on it by any other Article, Parliament may make laws with respect to any of the matters enumerated in the Federal List or the Concurrent List (that is to say, the First or Third List set out in the Ninth Schedule).

(2) Without prejudice to any power to make laws conferred on it by any other Article, the Legislature of a State may make laws with respect to any of the matters enumerated in the State List (that is to say, the Second List set out in the Ninth Schedule) or the Concurrent List.

(3) The power to make laws conferred by this Article is exercisable subject to any conditions or restrictions imposed with respect to any particular matter by this Constitution.

(4) Where general as well as specific expressions are used in describing any of the matters enumerated in the Lists set out in the Ninth Schedule the generality of the former shall not be taken to be limited by the latter.

### **Inconsistencies between federal and State laws**

**75.** If any State law is inconsistent with a federal law, the federal law shall prevail and the State law shall, to the extent of the inconsistency, be void.

### **Power of Parliament to legislate for States in certain cases**

**76.** (1) Parliament may make laws with respect to any matter enumerated in the State List, but only as follows, that is to say:

- (a) for the purpose of implementing any treaty, agreement or convention between the Federation and any other country, or any decision of an international organization of which the Federation is a member; or



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### **Art. 74**

*See* Art. 159(4)(b).

*Clause (2)*

The words “Without prejudice to any power to make laws conferred on it by any other Article,” were inserted by Act 25/1963, subsection 2(2), in force from 31-08-1957.

### **Art. 75**

*See* Art. 76A(2) & 162(2).

### **Art. 76**

*See* Art. 159(4)(b) & 160(2), definition of the words “federal purposes”.

*Clause (1): See* Art. 169.

*Clause (1)(b): See* Art. 95D.

- (b) for the purpose of promoting uniformity of the laws of two or more States; or
- (c) if so requested by the Legislative Assembly of any State.

(2) No law shall be made in pursuance of paragraph (a) of Clause (1) with respect to any matters of Islamic law or the custom of the Malays or to any matters of native law or custom in the States of Sabah and Sarawak and no Bill for a law under that paragraph shall be introduced into either House of Parliament until the Government of any State concerned has been consulted.

(3) Subject to Clause (4), a law made in pursuance of paragraph (b) or paragraph (c) of Clause (1) shall not come into operation in any State until it has been adopted by a law made by the Legislature of that State, and shall then be deemed to be a State law and not a federal law, and may accordingly be amended or repealed by a law made by that Legislature.

(4) Parliament may, for the purpose only of ensuring uniformity of law and policy, make laws with respect to land tenure, the relations of landlord and tenant, registration of titles and deeds relating to land, transfer of land, mortgages, leases and charges in respect of land, easements and other rights and interests in land, compulsory acquisition of land, rating and valuation of land, and local government; and paragraph (b) of Clause (1) and Clause (3) shall not apply to any law relating to any such matter.

### **Power of Parliament to extend legislative powers of States**

**76A.** (1) It is hereby declared that the power of Parliament to make laws with respect to a matter enumerated in the Federal List includes power to authorize the Legislatures of the States or any of them, subject to such conditions or restrictions (if any) as Parliament may impose, to make laws with respect to the whole or any part of that matter.

(2) Notwithstanding Article 75, a State law made under authority conferred by Act of Parliament as mentioned in Clause (1) may, if and to the extent that the Act so provides, amend or repeal (as regards the State in question) any federal law passed before that Act.